

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2189
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Licensed health aides; scope of practice; rules;
3 definition

4 [A.] On or before October 1, 2026, the Arizona state board of
5 nursing shall adopt rules to implement the scope of practice for licensed
6 health aides as defined in section 32-1601, Arizona Revised Statutes. The
7 rules shall address at least the following:

8 1. Updated standards for licensed health aide training programs,
9 including curriculum and training and eligibility requirements for
10 licensed health aides, including specific requirements for licensed health
11 aides to perform routine ventilator care.

12 2. ~~[An attestation process to ensure]~~ [Required documentation from
13 a licensed medical provider attesting] that a [singular] patient is
14 suitable for licensed health aide-level care ~~[based on the patient's~~
15 ~~acuity]~~ [in order for a licensed health aide training program to allow a
16 person to participate in the program's curriculum, competency examination
17 and training].

18 3. An updated definition of family member.

19 4. Standards of conduct specific for licensed health aides that
20 take into consideration the circumstances of caring for a family member.

21 5. A discipline process for a licensed health aide who acts outside
22 of the standards of conduct, including providing care outside of their
23 trained competencies related to the health care needs of the individual
24 patient for whom the licensed health aide provides care.

25 6. A process to collect aggregated annual data on the use of and
26 outcomes associated with licensed health aides in this state [that
27 ~~protects the private health information of licensed health aide patients~~].

28 7. A definition of routine ventilator care.

Senate Amendments to H.B. 2189

1 [B. For the purposes of this section, "licensed medical provider"
2 means a physician who is licensed pursuant to title 32, chapter 13 or 17,
3 Arizona Revised Statutes, a nurse practitioner who is licensed pursuant to
4 title 32, chapter 15, Arizona Revised Statutes, or a physician assistant
5 who is licensed pursuant to title 32, chapter 25, Arizona Revised
6 Statutes.]

7 Enroll and engross to conform

8 Amend title to conform

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